THE STATE

HCMSCR649/26

Versus **REF: CHDR41/26**

KUDAKWASHE SHOKO

THE STATE

HCMSCR791/26

Versus **REF: ZKPP163/26**

TARISAI MANGOMA

IN THE HIGH COURT OFZIMBABWE
DUBE-BANDA J
MASVINGO 8 June 2026

Criminal review

DUBE-BANDA J:

[1] The two records of proceedings in issue were all placed before me on automatic review in terms of s57 of the Magistrates Court Act [*Chapter 7:10*]. This composite review judgment covers the two matters because they present an identical, recurrent, significant, and persistent problem.

[2] In the first record (HCMSCR649/26/26), the offender, Kudakwashe Shoko (Shoko), was charged with the crime of rape as defined in s 65(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] "the Code". It being alleged that on 13 February 2026, the offender, a male person, unlawfully and intentionally had sexual intercourse with the complainant, a female juvenile aged 12, without her consent, knowing that she had not consented to it or realizing that there was a real risk or possibility that she might not have consented.

[3] In summary, it was alleged that the offender, who was 20 years old, had sexual intercourse once with the complainant, a 12-year-old female, without her consent. The matter came to light after the complainant's sister was informed that the complainant was in a love relationship with the offender. Following inquiries, the complainant informed her sister that the offender raped her.

[4] The offender pleaded not guilty, and after a contested trial, he was found not guilty and acquitted on the charge of rape as defined in s 65 of the Code, but was convicted on the lesser offence of having sexual intercourse with a young person as defined in s70 of the Code. He was sentenced to 18 months imprisonment, of which six months were suspended on the usual conditions of good behaviour. The remaining 12 months of imprisonment were suspended on condition that the offender performs 420 hours of community service.

[5] In the second record (HCMSCR/26) the offender, Tarisai Mangoma, was charged with the crime of contravening s70 of the Criminal Law Code, i.e., having sexual intercourse with a young person. It being alleged that sometime in April 2026, the offender, who is a male aged 23 years old, proposed love to the complainant, a female juvenile aged 12 years. On 23 April 2026, the offender had consensual sexual intercourse with the complainant once during the night at the offender's place of residence. The matter came to light the following morning, after the complainant arrived home, was quizzed on her whereabouts the previous night by her mother, and in turn divulged what had transpired.

[6] The offender pleaded guilty and was duly convicted and sentenced to 36 months imprisonment, of which 12 months were suspended on the usual conditions of good behaviour. He remained with a direct imprisonment of twenty-four months.

[7] In both matters the complainants were at material times 12 years of age; the complainant on the first record was born on 11 February 2014, making her 12 years and 2 days old on the date of the commission of the offence. The complainant in the second record was born on 12 August 2013, making her 12 years 8 months and 11 days old on the date of the commission of the offence. In this regard, both complainants were aged 12 years at the time of the commission of the offences as is envisaged in s 2(3) of the Code, which states that: -

> "Where the determination of the age of a person is relevant for the purposes of this Code, a person shall be deemed to have attained a specified age on the commencement of the relevant anniversary of the day of his or her birth." See *The State* v *Moyo* HB-210-23; *The State v Rusimba* HMA-21-26.

[9] In my view s 2 (3) of the Code means a person attains a particular age on the anniversary of their birth date. In other words, the complainant in HCMSCR 649/26 will only turn 13 years on 11 February 2027. Until she turns 13, and in the reading of s 2 (3) of the Code she is "of 12 years" old. In respect of the complainant HCMCR 791/26 she will only turn 13 years on 12 August 2027. Until she turns 13, in terms of the reading of s 2 (3) of the Code she is "of 12 years."

[10] In this context, s 64(1) of the Code is engaged, it is so because it clearly and unambiguously states that:

> (1) A person accused of engaging in sexual intercourse, anal sexual intercourse, or other sexual conduct with a young person of or under the age of twelve years shall be charged with rape, aggravated indecent assault, or indecent assault, as the case may be, and not with sexual intercourse or performing an indecent act with a young person, or sodomy." (My emphasis).

[11] Therefore, at the time of engaging in sexual intercourse with the offenders, the complaints in both records were, in the reading of s 64(1) of the Code, "young persons of the age of twelve years." In the circumstances, in both cases the proper charge was rape as defined in s 65 of the Code. In fact, contravention of s 70 of the Code does not arise in a case where the complainant is 12 years old, or under the age of 12 years. In other words, there cannot be consensual sexual intercourse with a young person of 12 years or under 12 years old. The use of the word "shall" in s 64(1) implies peremptoriness. In the circumstances, the offenders were charged, prosecuted, convicted, and sentenced on an improper charge. In terms of s 29 (2) (b) (i) of the High Court Act [*Chapter* 7:06] "High Court Act". I find that the proceedings in the courts below were not in accordance with real and substantial justice.

[12] The last question is whether a substantial miscarriage of justice has actually occurred, to require the proceedings to be set aside and the matter remitted to the lower court, for the offenders to be charged with the appropriate charge. This is so because s 29(3) of the High Court provides that:

> (3) No conviction or sentence shall be quashed or set aside in terms of subsection (2) by reason of any irregularity or defect in the record or proceedings unless the High Court or a judge thereof, as the case may be, considers that a substantial miscarriage of justice has actually occurred.

[13] In general, where an accused person has been charged with an improper charge, it may be appropriate to set aside the proceedings and remit the matter to the lower court for a trial *de novo* on a proper charge. However, in *casu,* I accept that an irregularity or defect has occurred, but I cannot classify it as "a substantial miscarriage of justice" as required by s 29(3) of the High Court Act to warrant the conviction and sentence to be quashed and set aside. It is for these reasons that I am not inclined to set aside the proceedings and remit the matter for a trial *de novo.* Since the proceedings in the lower courts *were* not in accordance with real and substantial justice, I withhold my certificate.

DUBE-BANDA J …….